

Circumvention of access controls is quickly becoming a mandatory ability for a society consuming more and more media digitally. Access controls for things as simple and common as music, videos, books, and games, at best, are services that provide value for the end user, like Valve's Steam PC game client and Good Old Game's Galaxy game client. However, in most cases, access controls are simply software implementations that make accessing paid or legally free content inconvenient. Examples of this include Amazon's Kindle applications, Barnes & Noble's Nook applications, and Microsoft's Windows 10 store, which allow users to download files, but make them unusable in any other client without removing the access control (Digital Rights Management). In other cases, access controls can make content utterly accessible, either when online infrastructure has ceased to exist, such as Games for Windows Live, or when consumers have to use poorly designed programs to access their content, like BookWalker's PC client, which does not work when certain anti-virus programs are installed on the user's PC.

Without permanent access control circumvention exemptions, consumers have no legal recourse when content they legally own is essentially held hostage by software. Even worse, if the services they depend on to access that content fail and shutdown, those consumers are at the mercy of the content provider if they hope to retain access to it. That means that, at the very least, circumvention is required for the preservation of digital media, and should be given permanent exemptions, so that future 1201 rulemaking sessions can focus on more important matters.

Also, anti-trafficking measures are outside the purview of the Copyright Office. These are matters that should be left to the legislature and the companies selling the content. As game developer Lars Doucet explains in his blog posts "Piracy and the four currencies" and "Piracy and the four currencies, part 2,"ⁱⁱ piracy is a result of companies failing to provide services at resource costs that consumers will accept. To quote Doucet, "humans care about more things than money- namely, they care about time, pain-in-the-butt, integrity, and a million other things. Furthermore, the value of each of these things is different for each person - including money!" He gives a simplified case study of a person pirating *Game of Thrones*, which did *not* happen because of access control circumvention – it happened because HBO's method of delivering content was so onerous, it *caused* people to circumvent access controls to get it. If intellectual property owners wish to combat piracy, they should *not* get the Copyright Office to fight its battles for them – they should work to improve their services and provide consumers with options that lower the barriers to entry.

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ⁱ http://www.gamasutra.com/blogs/LarsDoucet/20120222/91144/Piracy_and_the_four_currencies.php

ⁱⁱ http://www.gamasutra.com/blogs/LarsDoucet/20120228/163145/Piracy_and_the_four_currencies_part_2.php